

Rajasthan Electricity Regulatory Commission (Service) Regulations, 2005

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State of Rajasthan - Act

Rajasthan Electricity Regulatory Commission (Service) Regulations, 2005

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Rajasthan Electricity Regulatory Commission (Service) Regulations, 2005

Rule RAJASTHAN-ELECTRICITY-REGULATORY-COMMISSION-SERVICE-REGULATIONS-2005 of 2005

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Rajasthan Electricity Regulatory Commission (Service) Regulations, 2005

Published vide Notification No. RERC/Secy/Regulation/35, dated 21.3.2005

Last Updated 29th May, 2019

No. RERC/Secy/Regulation/35. - In exercise of the powers conferred on it by Section 91 read with Section 181 of the Electricity 36 of 2003), the Rajasthan Electricity Regulatory Commission after previous publication hereby makes the following regulations, namely:-

Chapter 1

General

1.

Short Title, Commencement and Scope.

(1)

These Regulations may be called the "Rajasthan Electricity Regulatory Commission (Service) Regulations, 2005.

(2)

These regulations shall come into force from the date of their publication in the Official Gazette except, as otherwise specifically mentioned in Rule 14.

2.

Applicability.

- These Regulations shall apply to all Officers/Staff of Rajasthan Electricity Regulatory Commission, including the Secretary of the Commission.

3.

Definitions.

(1)

In these regulations, unless the context otherwise requires, -

(a)

"Act" shall mean the Electricity Act, 2003.

(b)

"Appointing Authority" shall mean Commission in respect of posts specified in Part I of Appendix A and Secretary in respect of posts specified in Part II of Appendix A.

(d)

"Commission" shall mean the Rajasthan Electricity Regulatory Commission.

(2)

Words or expressions occurring in these regulations and not defined herein above, shall bear the same meaning as in the Act.

Chapter 2

Categorisation of Posts & Strength of Officers and Staff

4.

The Commission, with the approval of the State Government, specifies the number, and categories of officers and employees as mentioned in Appendix-'A'.

Chapter 3

Appointment of Officers and Employees, Pay and Allowances

5.

(1)

Appointment to a vacant post in the Commission may be made by either of the following methods: -

(i)

Direct Recruitment

(ii)

Promotion

(iii)

Deputation from Central Government/State Government or Central/State Government undertakings, Companies, Corporation or Boards and Co-operative Federation.

(2)

The period of initial deputation shall be four years extendable by two years with the approval of administrative department. No deputation allowance will be admissible to the person on deputation during the extended period of deputation.

(3)

The Commission may relax the age limit, and experience prescribed for a post for reasons to be recorded in case of persons to be taken on deputation.

6.

The Commission at its discretion may leave any post unfilled or keep in abeyance for any period of time.

7.

Scale of Pay and Allowances etc.

(1)

The Commission, with the approval of the State Government, determines the scale of pay applicable to the posts of the officers and employees of the Commission as specified in Appendix 'A'.

(2)

Other Allowances & Benefits shall be the same as determined by State Government from time to time for its employees. All rules, regulations, orders, instructions issued by the State Government for its employees shall be applicable to the employees of the Commission except those specified in these regulations.

(3)

Persons appointed by direct recruitment shall be entitled to the contributory pension scheme of the State Government as in force at the time of appointment and as modified from time to time.

(4)

Officers and employees taken on deputation shall be governed by the terms and conditions of deputation prescribed by the parent employer.

8.

Qualification & Experience.

(1)

Essential qualification and experience in respect of posts for officers and other employees of the Commission shall be as mentioned in Part-I & II of Appendix 'A'.

(2)

The Commission may relax the eligibility criteria in respect of age and experience for appointment in appropriate cases after seeking DOP's concurrence.

9.

There shall be a Selection Committee consisting of such persons as specified in Appendix - 'B' to select and recommend persons for appointment in the Commission by direct recruitment or promotion, as the case may be. The Commission shall determine, preferably at the commencement of each calendar year, the number of vacancies anticipated during the year and the number of persons likely to be recruited by each method.

10.

Reservations for members of Scheduled Caste, Schedule Tribes, Other Backward Classes and other special categories of persons and relaxation in the age laid down by the State Govt, shall be applicable to the persons to be appointed in the Commission. The Commission shall also follow the orders issued by State Government from time to time in respect of recruitment, promotion and compulsory retirement of persons having more than two children.

Chapter 4

Procedure for Direct Recruitment

11.

In case of appointment of staff by direct recruitment, the Commission may prescribe, the form in which applications are to be made, documents and certificates to be submitted with the application, mode of submission, last date for receipt of applications and the designated officer, for submission of applications. The Commission will ensure wide publicity and allow sufficient time between announcement and the last date for submission of application, so as to provide adequate opportunity to all eligible candidates to apply.

12.

The Commission shall consider all valid applications received in the Commission and may shortlist candidates on the basis of curriculum vitae of the applicants.

13.

The Commission may prescribe the mode of selection, including written test or interview or both or any other method for assessing the suitability of the persons to be short-listed and their ranking in order of merit.

14.

Absorption.

(1)

A person on deputation with the Commission for atleast a period of one year on 31.12.2003 may be absorbed by the Commission, if found suitable on screening by a Committee, from the date of his deputation to the Commission, on the

sanctioned post on which such person is working. In such a case those who are entitled to pensionary benefits on their retirement in the parent organisation, will continue to be entitled for pensionary benefits on their retirement from the Commission and those who are members of Contributory Provident Fund Scheme will continue as member of Contributory Provident Fund Scheme.

(2)

The service rendered by such person prior to absorption in the Commission in the parent Department/Organisation shall be counted as continuous service for all purposes, including terminal benefits, like pension, gratuity etc.

(3)

The essential qualification and experience for absorption in the Commission shall be as per Appendix-E.

Chapter 5

Procedure of Appointment by Promotion

15.

The persons possessing the qualifications and experience prescribed for the respective post as mentioned in column 5 of appendix 'A' shall be eligible for promotion to that post. While determining the eligibility for promotion of the persons absorbed in the Commission, services rendered in the required pay scale in the parent department/organisation irrespective of the designation of the post shall be counted towards experience required for appointment to a higher post by promotion.

16.

(1)

The zone of consideration of persons eligible for promotion in the service shall be three times of the number of vacancy.

(2)

Where the number of eligible persons for promotion to higher posts is less than the number specified above, all persons so eligible shall be considered.

(3)

Where adequate number of candidates belonging to Scheduled Castes or Scheduled Tribes, as the case may be, are not available within the zone of consideration specified above, the zone of consideration may be extended to five times the number of vacancies and the candidates belonging to Scheduled Castes and Scheduled Tribes, as the case may be, (not any other) coming within the extended zone of consideration shall also be considered against the vacancies reserved for them.

17.

The Selection Committee shall consider the cases of all eligible and qualified persons for promotion to the class of posts mentioned in these regulations interviewing such of them as it may deem necessary. The recommendations of the Selection Committee along with confidential rolls and personal files shall be placed before the Commission.

Chapter 6

Probation, Confirmation and Seniority

18.

All persons appointed by direct recruitment to the posts mentioned in the Appendix 'A' shall be placed on probation for one year.

19.

The appointing authority may extend the period of probation by a specified period not exceeding one year.

20.

If it appears to the appointing authority, at any time during or at the end of the period of probation, that the employee has not made sufficient use of opportunities afforded to him or her or fails to render satisfactory service to the Commission, the appointing authority may discharge him/her from the Commission's service.

21.

A probationer shall be confirmed in his appointment after the successful completion of the period of probation retrospectively from the date he was placed on probation.

22.

Interse seniority of person absorbed in the Commission shall be such as determined by the Commission.

23.

Interse seniority of two or more persons promoted from the lower post by the same order of the same date shall be the

same as their seniority in the lower cadre.

24.

If two or more persons are appointed in the same year, a person appointed by promotion shall rank senior to a person appointed by direct recruitment.

Chapter 7

Annual Assessments, Disciplinary Proceedings and Penalties

25.

The Annual Performance Appraisal Reports of RERC employees will be reported upon in the formats as prescribed by the Commission/State Govt, by the authorities mentioned in Appendix-D for various categories of posts.

26.

The Disciplinary Authority for the staff of the Commission shall be Secretary and Appellate Authority shall be the Chairperson. The Rajasthan Civil Services (Conduct) Rules of the State Govt, shall mutandis be applicable to the employees of the Commission. The employees of the Commission shall be liable to penalties laid down in the Rajasthan Civil Services (Classification, Control and Appeal) Rules and the procedure laid down in the said rules shall be applicable for imposing penalties on the employees of the Commission.

Chapter 8

Conditions of Service

27.

The Commission may specify the conditions of services application to an officer or an employee appointed by the Commission in the letter of appointment.

28.

The staff of the Commission, who are on deputation from other organizations and subscribers of the Contributory Provident Fund/General Provident Fund, shall continue to be Members of such Fund. The subscription in respect of such employees shall be deducted from their salary as per the scheme applicable in their parent Organisation and along with employer's contribution towards pension/gratuity as per the terms and conditions of deputation shall be deposited in the Contributory/General Provident/Pension/Gratuity Fund as per the terms of deputation.

29.

The Commission may send its permanent staff on deputation to other undertakings on the terms and conditions of of deputation prevalent in the State Govt.

30.

If the Commission determines that the services of a deputationist are no longer required, he/she may be repatriated to his/her parent department even before completion of his/her normal period of deputation.

Appendix-A

Rajasthan Electricity Regulatory Commission

Part-I {

| -

| Particulars of post

| No. of posts

| Scale of pay

| Maximum age limit

| Method of recruitment

| Essential qualification and experience

| -

| Commission Secretary

| 1

| 18400-22400

| -

| On deputation from State Govt.

| Member of Indian Administrative Service

| -

| Special Secretary (Finance)

| 1
14300-18300
By promotion Seniority Cum Merit
Minimum 5 years of service as Joint Secretary
(Finance)
in the pay scale of 12000-375-16500.
-
Special Secretary (Technical)
1
14300-18300
-
By promotion Seniority Cum Merit
Minimum 5 years of service as Joint Secretary
(Technical)
in the pay scale of 12000-375-16500.
-
Joint Secretary (Technical)
2
12000-16500
-
By promotion Seniority Cum Merit
Minimum 5 years of service as Dy. Secretary
(Technical)
in the pay scale of 10000-15200.
-
Joint Secretary (Finance)
1
12000-16500
-
By promotion Seniority Cum Merit
Minimum 5 years of service as Dy. Secretary
(Finance)
in the pay scale of 10000-15200.
-
Dy. Secretary (Finance)
1
12000-16500
-
By deputation
CA/ICWA/M.Com. with 5 years experience in the
pay scale of 10000-15200.
-
Dy. Secretary (Technical) T.A. to Chairman
1
10000-15200
-
By promotion Seniority Cum Merit
Minimum 5 years of service as Assistant
Secretary (Technical) in the pay scale of 8000-13500.
-

| Dy. Secretary (Technical)

| 2

| 10000-15200

| -

| By promotion Seniority Cum Merit

| Minimum 5 years of service as Assistant

Secretary (Technical) in the pay scale of 8000-13500.

| -

| Dy. Secretary (Finance)

| 1

| 10000-15200

| -

| By promotion Seniority Cum Merit

| Minimum 5 years of service as Assistant

Secretary (Finance) in the pay scale of 8000-13500.

| -

| Dy. Secretary (Law)

| 1

| 10000-15200

| -

| By deputation from State Judicial/Legal
Services.

| (i)

| Professional degree in law from a recognised
University/Institution.

| -

| (ii)

| Minimum 5 years of experience of legal matters
in the pay scale of 8000-13500.

| -

| Dy. Secretary (Administration)

| 1

| 10000-15200

| -

| By promotion Seniority Cum Merit

| Minimum 5 years of service as Assistant

Secretary/P.S. in the pay scale of 8000-13500.

| -

| Dy. Secretary (Senior Economic Analyst.)

| 1

| 10000-15200

| -

| By deputation

| M.A. Economics with Minimum 5 years of service
in the pay scale of 8000-13500.

| -

| Assistant Secretary (Technical)

| 4

| 8000-13500

| For direct recruitment:As declared by

State Govt. for a post carrying same pay scale.

| 2/3rd by promotion, 1/3rd by direct recruitment.

| For direct recruitment: Degree in Electrical Engineering from recognised University/Institution.

| -

| For promotion : Minimum 5 years of service as Executive Assistant (Technical) in the pay scale of 5000-8000.

| -

| Assistant Secretary (Finance)

| 3

| 8000-13500

| For direct recruitment: As declared by State Government for a post carrying same pay scale

| 2/3rd by promotion, 1/3rd by direct recruitment.

| For direct recruitment: CA/ICWA/M.Com from a recognised University/Institution.

| -

| For promotion: Minimum 5 years of service as Accountant in the pay scale of 5500-9000

| -

| P.S. with Chairman

| 1

| 8000-13500

| -

| By promotion Seniority Cum Merit.

| Minimum 5 years of service as Sr. PA in the Pay scale of 6500-10500.

| }

Part-II {

| -

| Particulars of post

| No. of posts

| Scale of pay

| Maximum age limit

| Method of recruitment

| Essential qualification and experience

| -

| Sr. P.A.

| 2

| 6500-10500

| -

| By promotion Seniority Cum Merit

| Minimum 5 years of service as PA in the Pay scale of 5500-9000

| -

| P.A.

| 3

| 5500-9000

| -

| By promotion Seniority Cum Merit

| 5 years of experience of steno/computer operator in the new scale of 5000-8000

|-

| Legal Assistant

| 1

| 5000-8000

| -

| By deputation

| (i)

| Professional degree in Law from a recognised University.

|-

| (ii)

| 5 years experience of dealing with legal matters.

|-

| Steno/computer operator

| 6

| 5000-8000

| For direct recruitment:As declared by State Govt. for a post carrying same pay scale

| 2/3rd by promotion, 1/3rd by direct recruitment.

| For Direct Recruitment:

|-

| (i)

| Graduate degree from a recognised University.

|-

| (ii)

| Expertise in short hand

|-

| For Promotion:

5. years service on a post in pay scale of 4000.

-6000 with knowledge of MS office

|-

| Executive Assistant (Technical)

| 4

| 5000-8000

| As declared by State Govt. for a post carrying same pay scale

| Direct

| (i)

| Graduate degree in electrical Engineering from a recognized University.

|-

| Accountant

| 1

| 5500-9000

| -

| By promotion Seniority Cum Merit

| Minimum 5 years of service as Junior Accountant in the pay scale of 5000-8000.

|-

| Junior Accountant

| 1

| 5000-8000

| As declared by State Government for a post carrying same pay scale

| By direct recruitment/deputation from Rajasthan Subordinate Accounts Service.

| Bachelor of Commerce from recognised University.

| -

| Store Keeper & Cashier Librarian cum House Keeper

| 2

| 4000-6000

| -

| By promotion Seniority Cum Merit

| 5 years experience on a post in the scale of 3050.

-4590.

| -

| Establishment Clerk/RR Dispatch Clerk

| 3

| 3050-4590

| As declared by State Govt. for a post carrying same pay scale

| Direct recruitment

| Graduate from recognized University/Institution. Knowledge of computer typing & MS Office.

| -

| Driver

| 2

| 3050-4590

| As declared by State Govt. for a post carrying same pay scale

| Direct

| Must have light vehicle licenses with 3 years experience in driving car.

| -

| Class-IV

| 8

| 2550-3200

| As declared by State Govt. for a post carrying same day scale.

| Direct

| Must be able to read & write Hindi and knowing cycling.

| }

Appendix-B

Constitution of Selection Committee

The Selection Committee to select personnel for appointment by direct recruitment, mentioned in Part-I of the Appendix-'A' shall consist of the following:-

{|

1.

Chairperson of the Commission or a member
nominated by him.

Chairperson

2.

One Member of the Commission

Member

3.

Subject matter Specialist to be nominated by the
Chairperson.

Member

4.

Secretary

Member Secretary

|-

| The Selection Committee to select personnel for
appointment by direct recruitment mentioned in Part-II of
Appendix-'A' shall consist of the following:-

|-

|

1

Secretary of the Commission

Chairperson

2

Subject matter Specialist to be nominated by the
Chairperson.

Member

3.

Concerned Special Secretary of the Commission

Member Secretary

|-

| The Selection Committee to select personnel for
appointment by promotion, mentioned in Part-I of Appendix-'A'
shall consist of the following:-

|-

|

1

Chairperson of the Commission

Chairperson

2.

Secretary

Member Secretary

|-

| The Selection Committee to select personnel for
appointment by promotion mentioned in Part-II of Appendix-'A'
shall consist of the following:-

|-

|

1

Secretary of the Commission

Chairperson

2.

Concerned Special Secretary of the Commission

Member Secretary

l}

Appendix 'C'

Disciplinary Authority and Appellate Authority

The Disciplinary Authority for the staff of the Commission shall be Secretary and Appellate Authority shall be the Chairperson.

Appendix 'D'

Annual Performance Appraisal Report

S. No.

Category of Post

Reporting Officer

Reviewing Officer

Accepting Authority

1.

Secretary

Chairman

Chairman

Chairman

2

Special Secretary

Secretary

Chairman

Chairman

3

Joint Secretary

Secretary

Chairman

Chairman

4.

Dy. Secretary

Secretary

Chairman

Chairman

5.

Assistant Secretary

Secretary

Chairman

Chairman

6.

P.S. to Chairman

Chairman

Chairman

Chairman

7.

Sr. Economic Analyst

Secretary

Chairman

Chairman

8.

Sr. PA with Chairman, Members & Secretary

Respective Controlling Officer

Respective Controlling Officer

Chairman

9.

P.A.

Respective Controlling Officer

Secretary

Secretary

10.

Executive Assistant (Tech.)

Respective Controlling Officer

Secretary

Secretary

11

Legal Assistant

Respective Controlling Officer

Secretary

Secretary

12

Accountant

Respective Controlling Officer

Secretary

Secretary

13

Junior Accountant

Respective Controlling Officer

Secretary

Secretary

14.

Steno-cum-Computer Operator

Respector Controlling Officer

Secretary

Secretary

15

U.D.C.

Respective Controlling Officer

Secretary

Secretary

16

L.D.C.

Respective Controlling Officer

Secretary

Secretary

17.

Driver

Respective Controlling Officer

Secretary

Secretary

Appendix 'E'

Rajasthan Electricity Regulatory Commission
Essential Qualification and Pay Scale for Absorption

Part-I {

|-

| Particulars of post

| Scale of pay

| Essential qualification and pay scale for
absorption

|-

| Joint Secretary (Technical)

| 12000-16500

| Degree in Electrical Engineering from a
recognised University/Institution working in the pay scale of
12000.

-16500 or higher pay scale in the parent department.

|-

| Joint Secretary (Finance)

| 12000-16500

| CA or ICWA or M.Com from a recognised
University/Institution working in the pay scale of 12000-16500 or
higher pay scale in the parent department.

|-

| Dy. Secretary (Technical)

| 10000-15200

| Degree in Electrical Engineering from a
recognised University/Institution working in the pay scale of
10000.

-15200 or higher pay scale in the parent department.

|-

| Assistant Secretary (Technical)

| 8000-13500

| Degree in Electrical Engineering from a
recognised University/Institution working in the pay scale of
8000.

-13500 or higher pay scale in the parent department.

|-

| Assistant Secretary (Finance)

| 8000-13500

| CA or ICWA or M.Com from a recognised
University/Institution working in the pay scale of 8000-13500 or
higher pay scale in the parent department.

|-

| P.S. with Chairman

| 8000-13500

| Graduate from a recognised
University/Institution working in the pay scale of 8000-13500 or
higher pay scale in the parent department.

|}

Part-II {

|-

| Particulars of post

| Scale of pay

| Essential qualification and pay scale for
absorption

| -

| P.A.

| 5500-9000

| Working in the pay scale of 5500-9000 or higher
pay scale in the parent department.

| -

| Steno/Computer Operator

| 5000-8000

| Working in the pay scale of 5000-8000 or higher
pay scale in the parent department.

| -

| Executive Assistant (Technical)

| 5000-8000

| Graduate degree in electrical Engineering from a
recognised University working in the pay scale of 5000-8000 or
higher pay scale in the parent department.

| -

| Accountant

| 5500-9000

| Graduate in commerce from a recognised
University/Institution working in the pay scale of 5500-9000 or
higher pay scale in the parent department.

| -

| Store Keeper & Cashier Librarian cum House
Keeper

| 4000-6000

| Working in the pay scale of 4000-6000 or higher
pay scale in the parent department.

| -

| Driver

| 3050-4590

| Working on the post of Driver in the pay scale
of 3050-4590 or higher pay scale in the parent department.

| -

| Class-IV

| 2550-3200

| Working in the pay scale of 2550-3200 or higher
pay scale in the parent department.

| }

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